

25TRCV03511 25TRCV03511

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Case Number: 25TRCV03511 Hearing Date: August 13, 2026 Dept: B

Moving Parties: Defendant Lote MD LLC dba

Blink Fitness

Responding

Party: Plaintiff Giselle Nuno

Motion

for Summary Judgment

INTRODUCTION

Defendant Lote MD

LLC dba Blink Fitness requests summary judgment in its favor and against

Plaintiff Giselle Nuno on the ground that no triable issue of material fact

exists and Defendant is entitled to summary judgment as a matter of law. The Court considered the moving,

opposition, and reply papers. The motion

for summary judgment is GRANTED.

PROCEDURAL

HISTORY

On October

14, 2025, Plaintiff Giselle Nuno filed a form complaint against Defendant asserting

one cause of action for premises liability.

On

March 13, 2026, Defendant filed its motion for summary judgment.

On

July 23, 2026, Plaintiff filed her opposition.

On

July 31, 2026, Defendant filed a reply.

OBJECTIONS

AND REQUEST FOR JUDICIAL NOTICE

Plaintiff's

objection Nos. 1 and 6 are OVERRULED.

Objection Nos. 2-5 are SUSTAINED.

Defendant's

objection nos. 1 and 2 are SUSTAINED.

Objection No. 3 is OVERRULED.

Defendant's

request for judicial notice is GRANTED.

FACTS

The form complaint

alleges that on February 10, 2025, Plaintiff was injured when she stepped onto

a moving treadmill at Defendant's Blink Fitness facility located in Gardena,

California. Defendant's Undisputed

Material Facts ("DUMF") 1. The entirety

of the narrative allegations in the form complaint state: "Plaintiff was injured on Defendant's

premises when she stepped onto a treadmill that was running at a high speed. Defendant knew or should have known that the

treadmill was operating at a high speed and failed to take measures to maintain

a [sic] safe premises. Defendant should

have conducted reasonable inspections of the premises and prevented this

dangerous condition." Complaint.

Before

Plaintiff was injured, at the time she became a member of Defendant's gym on

July 19, 2021, she voluntarily signed a Membership Agreement, which included a

Waiver and Release of Liability provision.

DUMF 5, 13. This provision

states:

IN CONSIDERATION OF THE MEMBERSHIP PRIVILEGES PROVIDED TO YOU HEREUNDER, AND ON BEHALF OF YOUR HEIRS, BENEFICIARIES, DISTRIBUTEES, LEGAL REPRESENTATIVES, SUCCESSORS, ASSIGNS AND GUESTS, YOU HEREBY VOLUNTARILY AND KNOWINGLY, FOREVER WAIVE, RELEASE, COVENANT NOT TO SUE, DISCHARGE AND HOLD HARMLESS BLINK, ITS PARENTS, SUBSIDIARIES, AND OTHER AFFILIATES, AND ITS AND THEIR RESPECTIVE OFFICERS, DIRECTORS, EMPLOYEES, CONTRACTORS, AGENTS, SUCCESSORS AND ASSIGNS (THE "BLINK PARTIES") FROM, AND SUCH BLINK PARTIES WILL NOT BE LIABLE TO YOU OR ANY OTHER PERSON FOR, ANY LOSSES OR DAMAGES, WHETHER DIRECT, INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, PUNITIVE, OR EXEMPLARY, INCLUDING WITHOUT LIMITATION FOR ANY PROPERTY LOSS OR DAMAGE, LOSS OF EARNINGS OR EARNING CAPACITY, PERSONAL INJURY, ILLNESS, DISEASE (INCLUDING AN INFECTIOUS DISEASE), INFECTION, IMPAIRMENT, PHYSICAL PAIN, MENTAL ANGUISH, PARALYSIS, HEART ATTACK OR DEATH, ARISING OUT OF, IN CONNECTION WITH OR RELATED TO THIS AGREEMENT, YOUR MEMBERSHIP, THE USE OR NON-USE OF ANY SERVICE, PRODUCT OR EQUIPMENT PROVIDED OR OFFERED HEREUNDER, WHETHER RELATED TO EXERCISE OR NOT AND REGARDLESS OF LEGAL THEORY OR WHETHER ARISING IN OR BY STATUTE, TORT, CONTRACT, STRICT LIABILITY, BREACH OF WARRANTY OR OTHERWISE, INCLUDING THOSE LOSSES OR DAMAGES RESULTING FROM OR CAUSED BY, IN WHOLE OR IN PART, THE NEGLIGENCE OF ANY BLINK PARTY AND REGARDLESS OF WHETHER SUCH LOSSES OR DAMAGES ARE KNOWN OR UNKNOWN TO YOU OR ANY OTHER PERSON; PROVIDED THAT THE FOREGOING RELEASE AND WAIVER OF LIABILITY SHALL NOT APPLY TO ANY LOSSES OR DAMAGES TO THE EXTENT CAUSED BY OR RESULTING FROM THE WILLFUL OR WANTON MISCONDUCT OF ANY BLINK PARTY OR TO THE EXTENT PROHIBITED BY LAW. NONETHELESS, THIS RELEASE IS INTENDED BY BOTH PARTIES TO BE AS BROAD IN EFFECT AS ALLOWED BY LAW AND SHALL COVER OR INCLUDE ANY CLAIM OR DEMAND YOU HAVE, HAD OR EVER WILL HAVE.

Defendant's Ex. A, ¶ 3.

STANDARD OF REVIEW

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."

Aguilar v. Atlantic Richfield Co.

(2001) 25 Cal.4th 826, 843. "Code of

Civil Procedure section 437c, subdivision (c), requires the trial judge to

grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519. A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(2).

"To meet its burden of proof, a plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant." Peralta v. The Vons Companies, Inc. (2018) 24 Cal.App.5th 1030, 1035 (quotation marks and citation omitted).

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; CCP §437c(c).

"[A]ny doubts as to the propriety of granting a summary judgment motion should be

resolved in favor of the party opposing the motion.” Reid v. Google, Inc. (2010) 50 Cal.4th 512, 535 (citation omitted).

ANALYSIS

Plaintiff alleges a cause of action for premises liability. The elements of premises liability mirror those for negligence: a legal duty of care, breach of that duty, and proximate cause resulting in injury. Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158. “Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises; accordingly, mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.” Id. (citations omitted). “Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm.” Annocki v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.

Defendant argues that it has a complete defense because there is a valid agreement signed by Plaintiff that releases Defendant from liability for ordinary negligence. “An exculpatory contract releasing a party from liability for future ordinary negligence is valid unless it is prohibited by statute or impairs the public interest. Numerous cases have upheld the validity of such agreements waiving ordinary negligence claims in the context of the use of gymnasiums and fitness facilities.” Joshi v. Fitness Int’l, LLC (2022) 80 Cal.App.5th 814, 826 (quotation marks and citations omitted). Defendant has carried its burden of showing that Plaintiff cannot succeed on her claim based in ordinary negligence because she waived such claims. Defendant’s Ex. A; DUMF 5, 13. Plaintiff does not contest the validity of the waiver. Plaintiff argues, however, that Defendant failed to carry its initial burden on gross negligence, which cannot be waived. See Joshi, supra, 80 Cal.App.5th 814, 827 (explaining that an agreement that purports to release liability for future gross negligence violates public policy and is unenforceable).

“Ordinary

negligence—an unintentional tort—consists of a failure to exercise the degree of care in a given situation that a reasonable person under similar circumstances would employ to protect others from harm. Gross negligence long has been defined in California and other jurisdictions as either a want of even scant care or an extreme departure from the ordinary standard of conduct.” *Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 555 (quotation marks and citations omitted).

“In the context of a motion for summary judgment, where a complaint alleges facts demonstrating gross negligence in anticipation of a release, the initial burden remains on the moving defendant asserting the release as a defense to produce evidence refuting the allegations constituting gross negligence. But when the plaintiff fails to allege in his or her pleading facts sufficient to support a theory of gross negligence, the defendant satisfies its burden by asserting a release as a complete defense, and the burden then shifts to the plaintiff to produce evidence that there is a triable issue of fact supporting gross negligence to defeat summary judgment.” *Joshi v. Fitness Int’l, LLC*, supra, 80 Cal.App.5th 814, 828 (quotation marks and citations omitted).

Defendant did not have the initial burden of refuting allegations constituting gross negligence because there are none in the complaint. Plaintiff alleged that Defendant failed to discover that a treadmill was operating at high speed. “[C]onduct demonstrating the failure to guard against, or warn of, a dangerous condition typically does not rise to the level of gross negligence.” *Ibid.* Having shown that the release is a complete defense, the burden shifts to Plaintiff to produce evidence that there is a triable issue of fact supporting gross negligence. “[A]lthough the existence of gross negligence is a matter generally for the trier of fact, it may be determined as a matter of law on summary judgment in an appropriate case.” *Ibid.* This is such a case.

Plaintiff failed to produce evidence that there is a triable issue of material fact supporting gross negligence. Plaintiff declares that as she stepped on the treadmill, the belt was already moving. She had not turned the treadmill on, and she had not set its speed. The belt was moving quickly, faster than a running pace. The moving belt immediately threw her off balance; she fell and was injured. No one from Blink warned her that a treadmill

might be left running while no one was using it. Plaintiff's Dec., ¶¶ 3-7. Nothing in her declaration supports that Defendant was grossly negligent. See *Anderson v. Fitness Int'l, LLC* (2016) 4 Cal.App.5th 867, 881 ("Mere nonfeasance, such as the failure to discover a dangerous condition or to perform a duty, amounts to ordinary negligence." (quotation marks and citation omitted)).

Plaintiff argues that Defendant was grossly negligent because it did not verify the automatic shut-off safety feature on the treadmill worked, did not inspect the treadmill for malfunction, and did not check equipment daily or the subject treadmill on the day of the incident. These arguments are immaterial because Plaintiff produced no evidence that the treadmill malfunctioned. Plaintiff further argues that Defendant had no safety procedures or procedures of any kind aimed at unattended running treadmills. This argument falls short because there is no evidence that Defendant departed from any manufacturer's safety directions or an industry standard in failing to do so. Cf. *Joshi, supra*, 80 Cal.App.5th 814, 828 ("Evidence of conduct that evinces an extreme departure from manufacturer's safety directions or an industry standard also could demonstrate gross negligence."). Finally, Plaintiff argues that Defendant disregarded a safety instruction, yet cites no safety instruction that was purportedly disregarded.

Plaintiff relies on *Jimenez v. 24 Hour Fitness USA, Inc.*, *supra*, 237 Cal.App.4th 546, and *Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, to no avail. In *Jimenez*, a plaintiff was injured when she fell backwards off a moving treadmill and hit her head on an exercise machine placed approximately four feet behind the treadmill. *Jimenez, supra*, 237 Cal.App.4th 546, 549. The court found that there were triable issues of fact because the plaintiff presented evidence of a possible industry standard on treadmill safety zones, including the treadmill manufacturer's owner's manual that instructed that the minimum space required for user safety is six feet deep; the manufacturer's treadmill assembly guide that instructed the treadmill requires a minimum six-foot-deep clearance behind it for user safety; and an expert declaration stating that, for user safety, it is important that there be a safety zone behind the treadmill that is kept clear of all objects. *Id.* at 556.

In *Chavez*,

supra, 238 Cal.App.4th 632, 634, a plaintiff was injured when the back panel of a cross-trainer machine struck her in the head. The defendant presented evidence that it employed a technician to routinely inspect and perform preventative maintenance on its equipment. Id. at 635. The plaintiff pointed out, however, that despite employing such technician, there was no evidence that anyone actually performed preventative maintenance on the cross-trainer machine. Id. at 636. Plaintiff also presented evidence that the owner's manual called for maintenance, along with a declaration from a consultant and supplier specializing in physical conditioning equipment opining that it is the custom and practice in the fitness industry to perform preventative maintenance on all machinery in compliance with the owner's manual. Ibid. Finally, the plaintiff submitted an expert declaration of a mechanical engineer specializing in engineering design of exercise equipment who declared that he inspected the cross-trainer and stated that the back panel should be held in place by four metal brackets and magnetic strips, but the upper right bracket and upper left magnetic strips were missing, and the three remaining brackets were bent and separating from the machine. Ibid. On this record, the court found that there were triable issues of fact regarding whether the defendant was grossly negligent with respect to preventative maintenance. Id. at 642.

Unlike those cases, there is no evidence here that Defendant "violated something like an industry standard, or manufacturer's safety directions or otherwise made an extreme departure from the ordinary standard of conduct." Jimenez, supra, 237 Cal.App.4th 546, 561.

Finally, Plaintiff argues that Defendant is not entitled to summary judgment because it did not preserve any video footage of the incident, which Plaintiff alleges would have shown how long the treadmill was running before the incident. There is no evidence that Defendant's video cameras captured the incident. In fact, there is evidence that the cameras did not capture it. At his deposition, the gym's General Manager, Brian Lopez, testified that he checked to see if any video footage captured the incident, he checked eight different angles, and the incident was not captured on video because it was in a "blind spot" in the gym. Farzan Dec., Ex. 1 (Lopez Depo.) at PDF 19-21 (the deposition transcript pages are unnumbered). Lopez declared that he did not save any footage because no camera angle showed the incident. Id. at PDF 21.

The

Court finds that Plaintiff has not carried her burden of producing evidence sufficient to raise a triable issue of fact of gross negligence.

CONCLUSION

The motion for summary judgment is GRANTED.

Defendant is ordered to file a separate proposed judgment.

Defendant is ordered to give notice of ruling.